

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Fredda Mangel) Docket No. 2020-70
License No. 068.0000529)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Respondent Fredda Mangel, by and through her counsel, Matthew D. Anderson, Esq., who hereby Stipulate and Agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the “Board”) has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Licensed Clinical Mental Health Counselors (“LCMHC”); issue warnings or reprimands, suspend, revoke, limit, condition, deny, or prevent the renewal of licenses if, after disciplinary hearing, it finds that Respondent has engaged in unprofessional conduct. 3 V.S.A. §§129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Alleged Facts

2. Fredda Mangel (“Respondent”) of Winooski, Vermont is licensed by the State of Vermont as a Clinical Mental Health Counselor under license number 068.0000529. The license was first issued on January 22, 2001 and expires on January 31, 2021.
3. In 2018, Respondent provided counseling services on a single occasion to a school-based clinician who was referred to Respondent through an Employee Assistance Program. (“Client 1”).
4. Toward the end of the session with Client 1, Respondent asked Client 1 about another client of Respondent’s, a minor who was a student at the school where Client 1 worked (“Client 2”).
5. Respondent told Client 1 about problems Client 2 was having and why Client 2 was in counseling with Respondent.
6. Client 1 reported that she felt Respondent was asking Client 1 her professional opinion about Client 2.

Violation One: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

7. Paragraphs 2 through 6 above are incorporated herein.
8. Essential standards of acceptable and prevailing practice for Licensed Clinical Mental Health Counselors in Vermont require counselors to protect confidentiality, including a client's identity. Counselors disclose information only with appropriate consent or with sound legal or ethical justification. *See* ACA Code of Ethics, Standard B.1.c.
9. Paragraphs 2 through 6 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice when she violated client confidentiality by revealing to Client 1, who was in a counseling session for herself, that Client 2 was a client of Respondent's, and then also revealed problems Client 2 was having and why Client 2 was in counseling.
10. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has committed unprofessional in violation of 3 V.S.A. §129a(b)(2).

Violation Two: 3 V.S.A. §129a(a)(3) Failure to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 45 C.F.R. §164.502.

11. Paragraphs 2 through 6 above are incorporated herein.
12. The Health Insurance Portability and Accountability Act of 1996 ("HIPAA") is a federal law which prohibits a health care provider from accessing or using a patient's protected health information for a purpose other than treatment, payment, or health care operations of the Facility, except when authorized by the individual or as required by law. *See* 45 C.F.R. §164.502.
13. Paragraphs 2 through 6 above demonstrate that Respondent violated federal law by disclosing to Client 1 during counseling that Client 2 was a client and providing Client 1 with information about why Client 2 was in counseling.
14. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(3).

Violation Three: 3 V.S.A. §129a(b)(1) Performance of unsafe or unacceptable patient or client care.

15. Paragraphs 2 through 6 above are incorporated herein.
16. Vermont law requires LCMHC's to practice competently by providing safe and acceptable client care.

17. Paragraphs 2 through 6 above demonstrate that Respondent failed to provide safe and acceptable client care for Client 1 by diverting the focus of Client 1's counseling session from Client 1 to the mental health of Client 2, a student in the school where Client 1 worked.
18. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Understandings

19. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not dispute that the State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing.
20. Respondent understands that the Board must review and accept the terms of the Order set forth below and that if the Board rejects all or any portion of the Order, then this entire document shall be null and void.
21. Respondent specifically waives any claim that any disclosures made to the Board during the Board's review of this agreement prejudice Respondent's right to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a hearing on the merits before the same Board.
22. Respondent has read and reviewed this document fully and agrees that it contains the entire agreement between the parties.
23. This Stipulation and Consent Order is entered into voluntarily by Respondent after the opportunity to consult with legal counsel. Respondent has not been coerced by anyone into signing this Stipulation and Consent Order.
24. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
25. Respondent is of sound mind and is not under the influence of drugs or alcohol when signing this Stipulation and Consent Order.
26. Respondent agrees that the Order set forth below may be entered by the Board.
27. Respondent understands that she is responsible for all compliance costs associated with this Stipulation and Consent Order.

ORDER

Based upon the above stipulation, it is **ORDERED AND ADJUDGED** as follows:

- A. Respondent's Licensed Clinical Mental Health Counselor license is hereby **REPRIMANDED**.
- B. Respondent's Licensed Clinical Mental Health license is hereby **CONDITIONED** commencing with the date of entry of this Stipulation and Consent Order. The conditions are as follows:
 1. Issuance of License: Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."
 2. Required Coursework: Respondent shall, within ninety (90) days following the entry of this Order, at her own expense, complete three (3) hours of pre-approved online courses, which must include education on ethics, confidentiality, and boundaries. For pre-approval, Respondent must submit to the Case Manager the name of each course, the name of the sponsoring organization, and a description of the course content and/or syllabus. Respondent must achieve a passing score on the post-tests for the courses, and submit test results, workbooks completed in full and in a satisfactory manner, and certificates of completion to the Office of Professional Regulation.

Failure to complete the courses within the prescribed timeframe shall constitute a violation of this Order. The coursework may not be counted toward any continuing education requirement of licensure.
 3. Costs. Respondent shall bear all costs of complying with this Consent Order.
 4. Violation of this Order. Any violation of this Order may be a basis for an additional disciplinary act. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.
 5. Completion of Conditional License Requirements. After completion of the required coursework, Respondent may petition to remove any or all conditions on her license. Respondent must present proof that she has fully complied with the terms of this Order.
- C. Notwithstanding any provision above, Respondent must continue to meet all requirements for maintaining a license, license renewal and license reinstatement.

- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

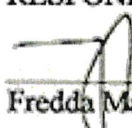
**STATE OF VERMONT
SECRETARY OF STATE**

Dated: 12/30/2020

By: /s/ Jennifer B. Colin
Jennifer B. Colin
Prosecuting Attorney

RESPONDENT

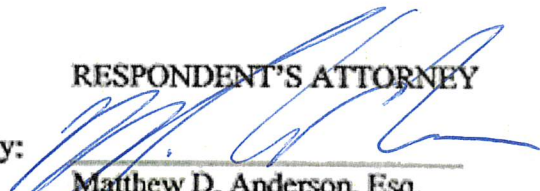
Dated: 12-21-2020

By: 
Fredda Mangel

APPROVED AS TO FORM:

RESPONDENT'S ATTORNEY

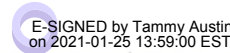
Dated: 12/23/20

By: 
Matthew D. Anderson, Esq.
Attorney for Respondent

APPROVED AND SO ORDERED:

**VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS**

Dated: January 25, 2021

By: 
Chairperson

Date of Entry: 1/21/2021